

24NNCV03140 24NNCV03140

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-06-26

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Case Number: 24NNCV03140 Hearing Date: June 26, 2026 Dept: P

[TENTATIVE] ORDER GRANTING IN PART AND DENYING IN PART DEFENDANT SIERRA MONROVIA CHEVROLET, LLC'S MOTION FOR SUMMARY JUDGMENT

I. INTRODUCTION

This is a Song-Beverly breach of warranty action arising out of the purchase of a used 2019 Chevrolet Silverado. On February 14, 2023, Plaintiff Mauro Gonzalez ("Plaintiff") purchased a used 2019 Chevrolet Silverado ("Subject Vehicle" or "Silverado") from Sierra Chevrolet of Monrovia ("Sierra Chevrolet") with 27,843 miles on the odometer. Plaintiff alleges that upon the purchase of the Subject Vehicle, the vehicle had numerous defects covered by the warranties, and Defendant failed to begin repairs in a reasonable time to conform the Subject Vehicle to the applicable warranties.

On March 16, 2026, the Court granted summary judgment in favor of Defendant General Motors LLC. On March 25, 2026, Sierra Chevrolet filed the instant motion for summary judgment, or alternatively summary adjudication. Plaintiff filed an opposition on June 5, 2026, and Sierra Chevrolet filed a reply on June 15, 2026.

II. LEGAL STANDARD

"A party is entitled to summary judgment only if it meets its initial burden of showing there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. This is true even if the opposing party fails to file any opposition. The court's assessment of whether the moving party has carried its burden—and therefore caused a shift—occurs before the court's evaluation of the opposing party's papers. Therefore, the burden on the motion does not initially shift as a result of what is, or is not, contained in the opposing papers." (Mosley v. Pacific Specialty Insurance Company (2020) 49 Cal.App.5th 417, 434–435 [landlord's failure to address issue of whether they were aware of their tenant's marijuana growing operation was not grounds to grant summary judgment where moving party failed to satisfy its initial burden as to the issue]; Thatcher v. Lucky Stores, Inc. (2000) 79 Cal.App.4th 1081, 1086-1087 [court cannot grant summary judgment based merely on lack of opposition; court must first determine if the moving party has satisfied its burden].)

In addition, the evidence and affidavits of the moving party are construed strictly, while those of the opponent are liberally read. (Government Employees Ins. Co. v. Sup. Ct. (2000) 79 Cal.App.4th 95, 100. "All doubts as to the propriety of granting the motion (whether there is any issue of material fact [Code of Civil Procedure] § 437c) are to be resolved in favor of the party opposing the motion (i.e., a denial of summary judgment)." (Hamburg v. Wal-Mart Stores, Inc. (2004) 116 Cal.App.4th 497, 502.)

Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action."

(Code of Civil Procedure §437c(o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Id.) If unable to prove the existence of a triable issue of material fact, summary judgment or summary adjudication in favor of the defendant is proper. (Id.)

“The burden on a defendant moving for summary judgment based upon the assertion of an affirmative defense is different than the burden to show that one or more elements of the plaintiff’s cause of action cannot be established. Instead of merely submitting evidence to negate a single element of the plaintiff’s cause of action, or offering evidence such as vague or insufficient discovery responses that the plaintiff does not have evidence to create an issue of fact as to one or more elements of his or her case the defendant has the initial burden to show that undisputed facts support each element of the affirmative defense. If the defendant does not meet this burden, the motion must be denied.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 467–468.)

“In general, the opposing party may not rely on the opposing party’s own pleadings (even if verified) to oppose the motion. Code Civ. Proc. § 437c, subd. (p); Roman v BRE Props., Inc. (2015) 237 CA4th 1040, 1054, 188 [plaintiff must show “specific facts” to defeat defendant’s summary judgment motion and may not rely on allegations of complaint].). A plaintiff may rely on the plaintiff’s pleadings to resist a summary judgment motion if the defendant’s motion is based on the legal insufficiency of the plaintiff’s claims as alleged. Hand v Farmers Ins. Exch. (1994) 23 CA4th 1847, 1853, 29 CR2d 258.” (Cal. Judges Benchbook Civ. Proc. Before Trial § 13.24 (2023).)

“[P]ointing out the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891; see Zoran Corp. v. Chen (2010) 185 Cal.App.4th 799, 808 [“It was not enough simply to assert that [Plaintiff] had no evidence supporting an element of each cause of action; a moving defendant “must indeed present ‘evidence,’ ” such as “ ‘affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice’ must or may ‘be taken’”].)

III. ANALYSIS

Defendant Sierra Chevrolet moves for summary judgment, or alternatively summary adjudication, contending that Plaintiff’s express warranty, implied warranty, UCL, and Magnuson-Moss claims fail as a matter of law because Plaintiff purchased the Subject Vehicle used, no warrantable defect manifested during the applicable implied warranty period, Plaintiff cannot establish damages, and no viable state-law warranty claim exists. (MSJ, pp. 1-2.)

First, Second and Third Causes of Action: Song-Beverly Violations

“The Song–Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.)² The Song-Beverly Act requires that “[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: [¶] (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties.” (Civ. Code, § 1793.2(a).)

The Song-Beverly Act provides in pertinent part: “If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B).” (Civ. Code, § 1793.2, subd. (d)(2).)

“‘New motor vehicle’ means a new motor vehicle that is bought or used primarily for personal, family, or household purposes... ‘New motor vehicle’ includes the chassis, chassis cab, and that portion of a motor home devoted to its propulsion, ... a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty... A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type.” (Civ. Code, § 1793.22, subd. (e)(2).)

Here, the undisputed evidence establishes that Plaintiff purchased the Subject Vehicle used on February 14, 2023, with 27,843 miles on the odometer. The Vehicle was originally delivered to its first owner on July 23, 2019. Plaintiff does not dispute that he purchased the Vehicle used or that he received only the balance of the manufacturer’s existing warranty coverage. (UMF, p.2.)

In *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, the California Supreme Court held that a used vehicle purchased with only the unexpired remainder of a manufacturer’s original warranty is not a “new motor vehicle” within the meaning of the Song-Beverly Act. Rather, the Act applies where the vehicle is sold with a manufacturer’s new car warranty. (Id. at p. 198, 202.)

Sierra Chevrolet has therefore met its initial burden of demonstrating that the Subject Vehicle does not qualify as a “new motor vehicle” under the Song-Beverly Act and that Plaintiff cannot establish an essential element of his First, Second, and Third Causes of Action. The burden shifts to Plaintiff to raise a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).)

In opposition, Plaintiff does not dispute that he purchased the Subject Vehicle used or that he received only the balance of the original manufacturer’s warranty. Instead, Plaintiff argues that the refund-or-replace remedy under Civil Code section 1793.2, subdivision (d), and the repair obligations under section 1793.2, subdivision (b), run against the manufacturer rather than the selling dealer. (Opposition, p. 7.) However, Plaintiff does not identify any evidence creating a triable issue as to whether the Subject Vehicle qualifies as a “new motor vehicle” under *Rodriguez*. Because the undisputed facts establish that it does not, Plaintiff has failed to meet his burden.

Thus, the Court finds that Sierra Chevrolet is entitled to summary adjudication of the First, Second and Third Causes of Action.

Fourth Cause of Action: Breach of Implied Warranty

“[E]very sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.” (Civ. Code, § 1792; see also Civ. Code, § 1791.1.)² “‘Consumer goods’ means any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables.” (Civ. Code § 1791.)” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Kiluk).)

“‘Implied warranty of merchantability’ or ‘implied warranty that goods are merchantable’ means that the consumer goods meet each of the following: [¶] (1) Pass without objection in the trade under the contract description. [¶] (2) Are fit for the ordinary purposes for which such goods are used. [¶] (3) Are adequately contained, packaged, and labeled. [¶] (4) Conform to the promises or affirmations of fact made on the container or label.” (Civ. Code, § 1791.1, subd. (a).)

Sierra Chevrolet argues the Fourth Cause of Action fails because the Subject Vehicle did not exhibit any warrantable defects during the three-month implied warranty period applicable to used vehicles. Sierra Chevrolet presents evidence that Plaintiff purchased the Subject Vehicle on February 14, 2023, and did not present the Vehicle to a GM-authorized repair facility for warranty repairs until April 22, 2024, more than one year later. (UMF ¶ 6.)

Based on this evidence, Sierra Chevrolet has met its initial burden of showing that no defect was discovered or repaired during the three-month implied warranty period set forth in Civil Code section 1795.5, subdivision (c). The burden therefore shifts to Plaintiff to demonstrate the existence of a triable issue of material fact.

In opposition, Plaintiff contends the absence of repairs during the implied warranty period is not dispositive because, under Mexia, an implied warranty may be breached by a latent defect that existed at the time of sale but manifested later. Plaintiff points to Defendant's own Exhibit D, which reflects that the Vehicle underwent an engine replacement on April 22, 2024, a second engine replacement on June 5, 2024, and multiple towing events thereafter. Plaintiff further argues that the cause and origin of the engine failures remain disputed, and that Sierra Chevrolet has presented no evidence establishing the alleged defects did not exist at the time of sale. (Opposition, pp. 4-6.)

The Court agrees. While it is undisputed that no repair presentation occurred during the three-month implied warranty period, that fact alone does not establish that the alleged engine defect did not exist at the time of sale. As Plaintiff correctly notes, the duration provision of Civil Code section 1795.5 merely limits the duration of the implied warranty and does not create a deadline for discovering latent defects. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1305.)

Plaintiff points to evidence showing that the Vehicle underwent two engine replacements within a relatively short period of time. The Court finds this evidence sufficient to raise a triable issue of material fact as to whether the Subject Vehicle contained a latent defect that rendered it unmerchantable when sold.

Based on the foregoing, the Court DENIES summary adjudication as to this cause of action.

Fifth Cause of Action: Violation of Business and Professions Code § 17200

"To bring a [UCL] claim, a plaintiff must show either an (1) unlawful, unfair, or fraudulent business act or practice, or (2) unfair, deceptive, untrue or misleading advertising. [citation] Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent. [citation]" (*Adhav v. Midway Rent a Car, Inc.* (2019) 37 Cal.App.5th 954, 970.)

¿ The UCL defines "unfair competition" to include "any unlawful, unfair or fraudulent business act or practice." (*De La Torre v. CashCall, Inc.* (2018) 5 Cal.5th 966, 974.) "Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent." (*Beasley v. Tootsie Roll Industries, Inc.* (2022) 85 Cal.App.5th 901, 911, review denied (Mar. 15, 2023).) "To prevail on a claim under the unlawful prong of the unfair competition law, the plaintiff must show that a challenged advertisement or practice violates any federal or California 'statute or regulation.'" (*Id.*, at p. 912.)

Sierra Chevrolet argues that Plaintiff's UCL claim fails because Plaintiff has not identified any specific unlawful, unfair, or fraudulent conduct attributable to Sierra Chevrolet. Sierra Chevrolet points out that the FAC contains only conclusory allegations regarding purported misrepresentations and omissions concerning the safety and reliability of the Subject Vehicle, without alleging who made the representations, when they were made, to whom they were made, or why they were false. (MSJ, pp. 8-9; See FAC ¶¶ 60-66.)

Sierra Chevrolet has met its initial burden of demonstrating that Plaintiff cannot establish an essential element of his UCL claim. The burden therefore shifts to Plaintiff to raise a triable issue of material fact.

In opposition, Plaintiff argues that because his warranty claims survive, the predicate for the UCL's unlawful prong likewise survives. (Opposition, p. 6.) Plaintiff's opposition does not meaningfully address Sierra Chevrolet's arguments regarding the UCL claim. Plaintiff does not identify any specific representation, omission, or business practice attributable to Sierra Chevrolet that was unlawful, unfair, or fraudulent. Nor does Plaintiff cite evidence showing that Sierra Chevrolet made any statement likely to deceive a reasonable consumer or concealed material information concerning the Subject Vehicle.

Based on this, the Court finds that Plaintiff has failed to raise a triable issue of material fact as to the UCL claim. Thus, Sierra Chevrolet is entitled to summary adjudication as to this cause of action.

Sixth Cause of Action: Violation of the Magnuson-Moss Warranty Act

"The Magnuson–Moss Warranty—Federal Trade Commission Improvement Act (Magnuson–Moss), 15 U.S.C. sections 2301 et seq., authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson–Moss calls for the application of state written and implied warranty law, not the creation of additional federal law," except in specific instances in which it expressly prescribes a regulating rule." (Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 832–833, as modified (Nov. 8, 2006) [holding that "the trial court correctly concluded that failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson–Moss."].)

Here, Sierra Chevrolet argues that Plaintiff's Magnuson-Moss claim fails because it is derivative of Plaintiff's state-law warranty claims. Sierra Chevrolet contends that because Plaintiff cannot maintain his Song-Beverly claims, the Magnuson-Moss claim necessarily fails as well. (MSJ, p. 10.)

Sierra Chevrolet has met its initial burden, and the burden shifts to Plaintiff to demonstrate a triable issue of material fact.

In opposition, Plaintiff argues that this claim survives because the Implied Warranty claim survives and cannot be disclaimed. (Opposition, pp.6-7.)

The Court finds that summary adjudication is not warranted. Although the Court concludes that Sierra Chevrolet is entitled to summary adjudication of Plaintiff's express warranty claims, the Court has found a triable issue of material fact remains as to Plaintiff's implied warranty claim. Because a Magnuson-Moss claim may be predicated on a viable state-law warranty claim, Plaintiff's surviving implied warranty claim is sufficient to support the Sixth Cause of Action at this stage.

Thus, the Court DENIES summary adjudication as to this cause of action.

IV. CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS Defendant request for summary adjudication as to the First, Second, Third and Fifth Causes of Action. The Court DENIES summary adjudication as to the Fourth and Sixth Causes of Action.

Sierra Chevrolet is to give notice of this order.

Dated: June 26, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT